

HOUSE No. 2816

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia A. Duffy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating education administrator retirement.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>1/9/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>3/12/2025</i>

HOUSE No. 2816

By Representative Duffy of Holyoke, a petition (accompanied by bill, House, No. 2816) of Patricia A. Duffy and James C. Arena-DeRosa relative to the retirement benefits of certain education administrators. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2511 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating education administrator retirement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Subsection 1P of Section 4 of chapter 32 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the word “elect” in line X, the following
3 words:-

4 Any member of a contributory retirement system who is engaged in an educational
5 administrator position and who was previously engaged in supervising the provision of special
6 education services and ensuring that services specified in each student’s individualized education
7 program are delivered in any non-public school in the commonwealth, if the tuition of all such
8 pupils taught was financed in part or in full by the commonwealth may, before the date any
9 retirement allowance becomes effective for him, establish such service as creditable service by
10 depositing into the annuity savings fund of the system of which he is a member in one sum, or in

11 installments, upon such terms and conditions as the board may prescribe, an amount equal to five
12 per cent of the compensation received by him during such period of service plus buyback interest
13 to the date of such deposit for such previous period, or most recent portion thereof, as he may
14 elect.